

GOLDEN RAINTREE II HOMEOWNERS ASSOCIATION, INC.

TO ALL RESIDENTS OF GOLDEN RAINTREE

RULES AND REGULATIONS

We need to establish a vision of how our homes should look and determine how we can be responsive to the needs of others within our village. Your Board of Directors has carefully considered which Rules and Regulations are positive contributors and have documented them in this form. Nothing in these Rules and Regulations is intended to be in conflict with, or in any way to supersede, the Declaration, Bylaws, and/or Articles of Incorporation of Golden Raintree II.

Basic to these rules is that which helps us to live in harmony with our neighbors, that which provides an orderly and clean appearance, and that which ensures that our homes provide a high level of quality maintenance and superior living. Let's join and work together to make Golden Raintree II the best community in the Township.

RULES

These Rules and Regulations were adopted at the Board of Directors Meeting held on **AUGUST 21, 2023** and were effective on passage.

MEETING SCHEDULE

- The Board of Directors usually meets every other month at the TCMA clubhouse.

Watch for posted notices for Agenda and schedule changes.

RULES AND REGULATIONS

GENERAL

"New and Revised Golden Raintree II, Rules and Regulations!"

The first (1st) time a Violation of any of these Rules and Regulations is proposed to the Board/Fining Committee and is determined by the

Board/Fining committee that the Violation/Violations are believed to actually be a violation of these Rules and Regulations, see the Fining

Schedule Below:

1st. Time = \$100.00

2nd. Time = \$200.00

3rd. Time = \$300.00

4th. Time = \$400.00

Etcetera

\$100.00 per Violation, up to a \$1,000.00

What we actually do, is we send a violation letter telling them they can request a hearing within 15 days from the receipt of the letter.

They either have a hearing date or we charge them with a Fine, \$100.00.

They come before the Fining Committee/Board. For a hearing about the violation.

To hear their story.

We go into conference mode.

We Tell them we decided to either drop the fine and just put a note in their file.

Or depending upon the circumstances, we could fine them.

A. The Owner of each unit shall notify the Association when they sell or lease their unit. A copy of the lease or contract for sale must be submitted to the Association at least 30 (thirty) days prior to the lease start or purchase closing date. Upon the Sale or Lease of any unit, the Association will supply a copy of the Rules of this Association to the new owner or tenant.

B. The Owner of each unit shall notify the Association that they are having guests occupy their unit when the Owner is not in residence.

C. A unit may be rented only in its entirety and no unit may be rented for hotel or transient purposes.

D. No corporation or company may purchase a unit except if the use is restricted to those people specifically named on the deed as the residents and/or occupants of the dwelling.

E. Every lease of a unit must contain a provision requiring the lessee to comply with all provisions of this Declaration, the Articles of Incorporation, By-Laws and Rules and Regulations.

F. All new owners, renters and occupants will be screened before moving in.

G. Owners must live in unit for (2) two years before it may be rented (leased).

H. All units that are rented will have a (1) year lease or longer and the Property Management company must have a copy of the lease.

I. New owners are required to deposit (3) three months of maintenance payments to be held in escrow for 1 (one) year with Property Management Company. Maintenance fees will start to be paid by the new Owner when they take possession.

J. A down payment of 10% is required, with 90% financing. Effective June 1st, 2023

DWELLING UNITS AND COMMON AREAS

A. The use of any Lot must, at all times, be in accordance with the zoning laws and ordinances of the City of Coconut Creek, Florida. Lots shall be used for only residential purposes.

B. No building, fence, wall or other structure shall be erected, placed or altered on any Lot until the construction plans, specifications and a plan showing the location of the structure have been approved by the Board of Directors.

C. No noxious or illegal activity shall be carried on upon any Lot, nor shall anything be done on it that may be or may become an annoyance or nuisance to the neighborhood.

D. In order to maintain an attractive appearance, no sign, advertisement, notice or other lettering shall be exhibited, displayed, inscribed, painted or affixed in, on or upon any part of the Properties by an Owner or occupant.

E. All trash must be put into plastic bags, securely tied, and placed inside the dumpster. It is the owner's responsibility to dispose of articles too large to fit easily into the dumpster. Large articles such as furniture, mattresses, appliances, etc. shall be placed in the dumpster area and the bulk refuse department of All Service Refuse called by the Owner or resident. Please break down large boxes before putting them into the dumpster.

F. No clothes lines or drying shall be allowed on any lot.

G. No exterior antenna or aerial of any kind may be erected or maintained anywhere on the Common Properties.

H. The sidewalks, entrances, stairways and all of the Common Properties must not be obstructed or encumbered or used for any purpose other than ingress or egress to and from the premises. Carts, carriages, chairs, tables, bicycles, toys or any other similar objects must be stored only in the Living Units and not left on front porches or sidewalks or common area.

I. In order that all Owners and Residents may have the quiet enjoyment of their property, no resident shall make or permit to be made any disturbing noises by their self, their family, servants, employees, agents, visitors and licensees, nor do or permit anything to be done to the other Residents.

No Resident shall unreasonably play any musical instrument, phonograph television, radio or sound amplifier in their unit in such a manner as to disturb or annoy other occupants of any neighboring units.

J. No resident shall conduct or permit to be conducted vocal or instruments instruction at any time.

K. No owner or Resident may direct, supervise or in any manner attempt to assert control over the employees or agents of the Association. No shall request any employee of the Association to provide any personal services to the Owner.

L. In order that the buildings maintain an attractive and uniform appearance, no Owner or resident shall cause anything affixed or attached to, hung, displayed or placed on the exterior walls, doors, windows or roof, nor shall any Owner or resident place anything other than porch furniture or plants on any porch or patio. Park bench or similar furniture is not allowed in the front or the rear of the unit.

M. All landscaped material must be maintained in a neat and attractive fashion. No landscape material may be planted in such a fashion as to alter the appearance of the front of the units and/or block the view of address and/or security lighting. Unit Owners are responsible for the removal and replacement of any dead or diseased plant material within the boundaries of the private property of each unit.

N. There shall be no solicitation by any person or organization anywhere in the complex for any cause, charity or any purpose whatsoever, unless specifically authorized by the Board of Directors.

O. No exterior of a residence or fence shall be repainted in a color which is different.

P. It is the responsibility of the unit owner having work done in their unit to see that all common areas affected by their service people are cleaned. Any costs incurred by the association for clean up or repairs will be the responsibility of the unit Owner.

Q. No Owner shall use or permit to be brought into the dwelling units any flammable oils or fluids such as propane gas, gasoline, kerosene naphtha or benzene or other explosives or articles deemed hazardous to life, limb or property.

R. All barbecue grills shall be stored and operated according to Broward County Fire Codes.

PETS

A. No animal may be kept, bred or maintained for any commercial purpose.

- B. No animal weighing in excess of twenty (30) pounds may be brought or kept upon the properties. This applies to "visiting" dogs as well.
- C. Each animal brought or kept upon the property shall be at all times under the control of the Owner. Dogs must be leashed or carried at all times.
- D. Dogs must be walked off the property. Each Owner of any animal brought or kept upon the property shall promptly remove and properly dispose of all fecal matter deposits by the animal made upon the properties, while on leaving the property.
- E. All pets must be registered with the Association on forms provided by the Association.
- F. No animal, bird or pet of any kind shall be raised bred or kept on any lot except that dogs, cats or other household pets may be kept in a Living Unit, provided that it does not cause any unreasonable interference with the use and enjoyment of any unit. No animal, bird or pet shall be allowed on any part of the Common Properties except in transport and any animal in transport shall be carried by the Owner or other responsible person.

SWIMMING POOL

- A. Use of pool and pool area is permitted during posted hours only. Use of the pool and pool area for parties or group activities after sundown requires the written approval of the Board of Directors.
- B. Pool hours are from Sunrise to Sunset.
- C. No person having any disease of the eye, ears, nose or throat or any communicable disease shall be permitted in the pool.
- D. No diving, running, pushing, shouting, horseplay, Frisbee, ball playing or unnecessary splashing shall be permitted in the pool area.
- E. No food or glass container of any kind shall be permitted in the pool area.

F. No furniture provided for the pool area shall be removed from there.

G. No occupant of any unit under the age of 16 years shall be permitted to entertain guests at the pool or pool area unless accompanied and supervised by an adult (21+) who is an occupant of the unit.

H. The pool and pool area is for the exclusive use of occupants and their guests. Locking security gates have been installed at the pool area entrances for the protection of you and your children. The gates must be kept closed and locked at all times.

I. All Owners and guests must observe posted rules at poolside.

J. No lounges or chairs are to be reserved or towels and articles to be left at pool area unattended.

K. Infants in diapers and non-toilet trained children are not allowed in the pool at any time.

L. Sole responsibility for safety and conduct of children using the pool or pool area lies with the parent or guardian.

M. No pets permitted in the pool area at any time.

N. A shower must be taken before entering the pool.

VEHICLES

A. The Board of Directors of the Association shall control and restrict the use of all parking spaces within the Golden Raintree II property and may, from time to time, assign and reassign the exclusive use of certain spaces to designated owners.

B. Due to the limited number of parking spaces provided within the development, occupant of each unit may have one (1) or two (2) allowable vehicles parked on the property. The Association shall issue one (1) or two (2) decal insignia to each

Owner which shall be affixed to the left rear window of each vehicle permitted to be parked within the property. Vehicles not displaying a decal may be towed from the premises at the vehicle Owner's expense. Vehicles owned by guests of Owners or residents may be parked for more than two (2) nights on the property only with the express written permission of the Board of Directors and shall display a dated guest parking permit issued by the Association.

C. Unit Owners or residents will initially be issued two Guest Passes. These passes shall be dated by the Owner for a specific period and shall be displayed on the dashboard of the vehicle during the time it is parked within the properties. Additional Guest Permits may be issued by the Association upon request.

D. No vehicles other than automobiles, passenger vans with windows on all sides, or sport utility vehicles (SUVS) shall be permitted to park within the properties except to make deliveries or provide repair or similar services to a unit. The parking of any vehicle used or intended for use for commercial purposes, displaying signs or advertising, or clearly adapted for commercial purposes is prohibited. Such vehicles may be towed at the Owner's expense and liability. Commercial vehicles may not be parked overnight or after 8:00 p.m.

E. Motorcycles are not allowed on the parking lot at any time.

F. No vehicles may be sold or advertised for sale within the properties.

G. Owners shall not park, nor shall they permit their families, guests or tenants to park in the parking spaces of other Owners.

H. Any vehicle not parked in a legally marked parking space is in violation of the Fire Lane Ordinances of the City of Coconut Creek, and may be ticketed and/or towed at the Owner's expense and liability.

I. All vehicles shall be parked "head in" to the parking space. Any vehicle parked otherwise is parked improperly and may be towed at the vehicle Owner's expense.

(J.) No Vehicles shall be permitted to park on the grass or anywhere else, except in a proper parking space only. Or you can be TOWED at the owner's expense.

K. No parking shall be permitted on the grass, lawn or sidewalk for any period of time.

L. Motor vehicles shall not be serviced, repaired, disassembled or assembled anywhere upon the properties except in an emergency. For the purpose of this section, oil changes, brake jobs or similar repairs are considered "service". Flat tire repair is allowed.

M. No vehicle which is leaking oil or fluid may remain on the properties for longer than 24 (twenty-four) hours. Any damage to the common areas, parking areas or drives caused by faulty vehicles (such as those leaking oil, hydraulic fluid, etc.) shall be repaired by the Association and the cost of such repairs will be assessed to the unit's Owner.

N. No vehicle which cannot be driven or operated under its own power, and/or which is not properly licensed or tagged, may remain on the property longer than 24 (twenty-four) hours. Any such vehicle may be ticketed and may be towed at the Owner's expense and liability.

(O.) All Trucks will have to comply to the TCMA truck policy, or may be towed at owners expense.

LANDSCAPING

A. Easements for installation and maintenance of utilities and drainage facilities are recorded in the public records. Within these easements, no structure, planting or other material shall be placed or permitted to remain that may damage or interfere with the installation and maintenance of channels in the easements or obstruct or retard the flow of water through drainage channels in the easements. The easement area of each Lot and all improvements on it shall be maintained continuously by the Owner of the Lot except for those improvements for which a public authority or utility company is responsible.

B. Areas of lots intended for landscaping shall be restricted to board approved vegetative plant material.

C. No furniture, statuary, shrubbery or trellises which alter the appearance of the front of the units or which may block the view of the address and/or security lighting are permitted.

D. All landscape material must be maintained in a neat and attractive manner. Unit Owner's are responsible for the removal and replacement of any dead or diseased plant material within the boundaries of the private property of each unit.

E. Unit Owners are responsible for the removal of any plant material which is damaging or threatening to damage any part of the common elements such as privacy walls, foundations, the irrigation system, sidewalks or their neighbor's property.



FYVE FLORIDA LLC
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GOLDEN RAINTREE II HOA

Dear unit owner,

We are looking for ways in which we can better communicate with all the owners in Golden Raintree. We want to be able to send you communications regarding the community – notices of planned activity such as tree trimming, or other work being done in the community – information about Board Meetings – notices about Budget Meetings and Annual Meetings. We know that most everyone today has email, and this is a very effective way to keep everyone informed. We would like everyone to provide us with an email address to use for this communication. We are asking that you please provide the email you would like us to use for Association communication by filling out the form below.

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I consent to receiving email notices from Golden Raintree II HOA. and its management agent Fyve Property Management and understand that my email address will become part of the official records of the Association. I also understand that it is my responsibility to update my email address should it change or if I no longer want email notices. Such communication would need to be in writing.

Please list one email address below (**Print Legibly**)

Email Address: \_\_\_\_\_

**Print Name:** \_\_\_\_\_ **Date:** \_\_\_\_\_

Signature: \_\_\_\_\_

Address: \_\_\_\_\_

Please return to:  
Golden Raintree II – Attention: Teri Jarry  
5100 W. Copans Road, Suite 100  
Margate, FL 33063

Or email this form to [teri.jarry@fyve.com](mailto:teri.jarry@fyve.com)